

25SMCV00468 25SMCV00468

County: los-angeles

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

8, 2026

CASE NUMBER

25SMCV00468

MOTION

Motion

to Compel Plaintiff's Physical Examination

MOVING PARTY

Defendants

Ava Rose Moise and Lisa Moise

OPPOSING PARTY

Plaintiff

Joshua Calderon

MOTION

This case arises from two-vehicle traffic collision.

On January 29, 2025, Plaintiff Joshua Caledron ("Plaintiff") filed suit against Defendants Ava Rose Moise and Lisa Moise as the alleged driver and owner of the other vehicle, respectively, alleging two causes of action for (1) motor vehicle negligence and (2) general negligence.

Defendants now moves to compel Plaintiff's physical examination and requests monetary sanctions in the amount of \$2,460.

Plaintiff opposes the motion and Defendants reply.

ANALYSIS

1. Physical Examination

In any case in which a plaintiff seeks to recover for personal injuries, any defendant may demand one physical examination of the plaintiff, to be conducted within 75 miles of plaintiff's residence, provided that the examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive. (Code Civ. Proc., § 2032.220.)

Here, Plaintiff's responses to Form Interrogatories indicate orthopedic injuries to Plaintiff's neck and back. (Nestler Decl. ¶ 3 and Ex. A.) At Plaintiff's December 19, 2025 deposition, Plaintiff similarly complained of ongoing back and forehead injuries. (Nestler Decl. ¶ 5.)

On November 19, 2025, Defendants' counsel served Plaintiff with a demand for physical examination with Dr. Steven Nagelberg, M.D., an orthopedic surgeon, with the exam noticed for January 8, 2026 at 10:00 a.m. at Dr. Nagelberg's office in Downey. (Nestler Decl. ¶ 6 and Ex. B.) Plaintiff's counsel served a response and objection, but agreed to make Plaintiff available for the January 8 exam. (Ibid.)

However, on January 7, Plaintiff's counsel emailed Defendants' counsel requesting a change of the time of the exam.

(Nestler Decl. ¶ 8.) Dr.

Nagelberg could not accommodate the time change, which Defendants' counsel communicated to Plaintiff's counsel. (Ibid.) Plaintiff failed to show for the January 8th exam. (Ibid.)

The parties thereafter met and conferred and agreed the exam would go forward on February 10, 2026 at 9:00 a.m. at Dr. Nagelberg's Downey office. (Nestler Decl. ¶ 9 and Ex. C.) Accordingly, on January 15, 2026, Defendants' counsel served Plaintiff's counsel with an amended demand for physical examination. (Nestler Decl. ¶ 10 and Ex. D.)

On January 16, 2026, Plaintiff's counsel served a response and objection to the amended demand, but nonetheless agreed for the exam to go forward on February 10, under certain terms and conditions. (Nestler Decl. ¶ 11 and Ex. E.) Defendants' counsel replied to Plaintiff's terms and conditions on January 19, 2026. (Nestler Decl. ¶ 12 and Ex. F.)

On February 10, 2026 at 10:13 a.m. Defendants' counsel received an email from Dr. Nagelberg's office indicating Plaintiff failed to appear for his examination. (Nestler Decl. ¶ 13 and Ex. G.)

Counsel subsequently met and conferred again, and on February 26, 2026, Plaintiff's counsel agreed to produce Plaintiff for a medical examination with Dr. Nagelberg on April 23, 2026 at 8:00 a.m. (Nestler Decl. ¶ 14 and Ex. H.) Accordingly, on March 2, 2026, Defendants' counsel served a second amended demand for physical examination. (Nestler Decl. ¶ 15 and Ex. I.)

Defendants' counsel did not receive any response or objection to the demand for physical examination scheduled for April 23, 2026. (Nestler Decl. ¶ 16.) On April 21 and 22, Defendants' counsel sent reminder emails to Plaintiff's counsel to confirm the physical examination, but no response was received. (Nestler Decl. ¶ 16 and Ex. J.)

On April 23, 2026, Dr. Nagelberg's office emailed Defendants' counsel indicating Plaintiff failed to show for his exam. (Nestler Decl. ¶ 17.)

The parties had agreed that the examination was to be limited to plaintiff's orthopedic condition and the issues in controversy and that no painful, protective, intrusive, or diagnostic tests were to be performed, reserving the right to move the court for an order, should such tests become necessary. (Nestler Decl. ¶¶ 18-19.)

In opposition, Plaintiff explains that the initial exam was missed because there was confusion over whether Dr. Nagelberg could accommodate a later exam appointment, the second exam was missed because Plaintiff inadvertently forgot the appointment, and the April 23 exam was missed due to a clerical calendaring error on the part of Plaintiff's counsel, due to staff turnover within counsel's office. (Gabrielyan Decl. ¶¶ 6-7, 10, 13-1 and Ex . C&D.)

Plaintiff further explains that Plaintiff's counsel emailed Defendants' counsel on May 12, 2026 providing him with dates for the examination, but Defendants' counsel filed the instant motion instead of attempting to resolve the issue with Plaintiff's counsel.

In reply, Defendants argue that Plaintiff's failure to appear for three scheduled physical examinations constitutes an abuse of discovery and they are concerned Plaintiff will fail to appear for a fourth exam without a court order.

Ultimately, the Court finds that Defendants have demonstrated an entitlement to the requested physical exam and Plaintiff has not demonstrated otherwise.

Therefore, the Court grants Defendants' motion for an order compelling Plaintiff to complete a physical exam with Dr. Nagelberg at the doctor's Downey office.

2. Sanctions

Defendants seek monetary sanctions from Plaintiff in the amount of \$2,460, representing \$1,800 for the three non-appearance fees from Dr. Nagelberg's office, three hours of attorney time incurred in connection with the instant motion at a rate of \$200 per hour, plus the \$60 filing fee for the motion.

In opposition, Plaintiff argues (1) Plaintiff acted with substantial justification and other circumstances make the imposition of sanctions unjust; (2) Defendants failed to properly notice the motion for sanctions under the correct statute; and (3) Defendants failed to substantiate their claimed monetary damages.

a. Substantial
Justification

Plaintiff argues that he acted with substantial justification and/or that the imposition of sanctions would be unjust because the three scheduled examinations were missed due to inadvertence, not an intentional refusal.

Notwithstanding, Plaintiff failed to show for the initially scheduled exam, despite receiving confirmation that the time could not be adjusted. Plaintiff apparently forgot to appear for the second exam. Finally, Plaintiff's counsel failed to appropriately calendar the third exam, despite receiving multiple reminder emails from Defendants' counsel.

Thus, inadvertent or not, Plaintiff's failure to appear at the first two examinations were not substantially justified. While Plaintiff's counsel's failure to appropriately calendar or communicate the third physical examination was also not substantially justified, in light of Defendants' counsel's reminder emails, that failure was apparently on the part of counsel, not Plaintiff himself. As such, Plaintiff should not be responsible for the \$600 non-appearance fee for the third missed examination, and Defendants have not requested monetary sanctions against counsel.

b. Notice

With regard to notice, if a party is required to submit to a physical examination but fails to do so, the Court, on motion, may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010). (Code Civ. Proc. § 2032.410.)

Code of Civil Procedure section 2023.010 provides that misuses of the discovery process include failing to respond or submit to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).)

The court, after notice to any affected party and opportunity for hearing, may impose a monetary sanction against any one engaging in a misuse of

the discovery process. (Code Civ. Proc.,
§ 2023.030.)

Plaintiff argues the notice was improper, because Defendants seek sanctions under Code of Civil Procedure section 2031.300, subd. (c) which applies to motions to compel responses to inspection demands, not physical exams.

To the contrary, the notice indicates only that Defendants move for monetary sanctions in the amount of \$2,460 against Plaintiff only, due to Plaintiff's nonappearance for the physical exam. That is sufficient to put Plaintiff on proper notice of the request, notwithstanding that the body of the motion erroneously cites section 2031.300, subd. (c) instead of 2032.410. As evidenced by the opposition, Plaintiff is aware of the statutory basis for the monetary sanctions request.

c. Substantiated
Charges

Finally, Plaintiff argues that Defendants failed to establish the charges were actually incurred, were actually paid, the amount charged is reasonable, or the claimed loss results from the sanctionable conduct.

The Court disagrees. The Nestler
Declaration indicates as follows:

21. That attached hereto and marked as Exhibit
"L" are true and correct copies of the three non-appearance fees from
Dr. Nagelberg's office totaling \$1,800.

22. That I have spent a minimum of 3 hours in the
preparation of this motion. I anticipate I will spend 1 hour in appearing and
arguing this motion. My office will incur a \$60 filing fee. That my reasonable
hourly rate is \$200 per hour. Therefore, defendant seeks sanctions against
plaintiff in the amount of \$2,460 for attorney's fees, costs, and cancellation
fees incurred in this matter.

(Nestler
Decl. ¶¶ 21-22 and Ex. L.)

CONCLUSION AND ORDER

For the foregoing reasons, the Court grants in part Defendants' motion and compels Plaintiff to appear and complete a physical exam with Dr. Nagelberg at the doctor's Downey office within thirty (30) days of notice of the Court's order.

Further, the Court grants in part Defendants' request for monetary sanctions against Plaintiff only in the amount of \$1,860, representing \$1,200 in non-appearance fees for the first two missed appointments attributable to Plaintiff's fault (but not the third non-appearance fee attributable to Plaintiff's counsel's fault), 3 hours of attorney time reasonably incurred in connection with the instant motion at the rate of \$200 per hour, and the \$60 filing fee to file the instant motion. Plaintiff shall pay Defendants \$1,860, through Defendants' counsel, within thirty (30) days of notice of the Court's order.

Further, the Court will enter the proposed Order lodged on May 15, 2026 in conformity with the ruling.

Defendants shall provide notice of the Court's Order and file the notice with a proof of service forthwith.

DATED: July 8, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court